**Amendment of section 158BB.**

**50.** In section 158BB of the Income-tax Act, with effect from the 1st day of September, 2024,—

(A) in the marginal heading, for the words "total income", the words "total undisclosed income" shall be substituted and shall be deemed to have been substituted;

(B) for sub-section (1), the following sub-sections shall be substituted and shall be deemed to have been substituted, namely:—

"(1) The total undisclosed income referred to in sub-section (1) of section 158BA of the block period shall be the aggregate of the following, namely:—

(*a*) undisclosed income declared in the return furnished under section 158BC;

(*b*) undisclosed income determined by the Assessing Officer under sub-section (2).

(1A) The following income shall not be included in the total undisclosed income of the block period, namely:—

(*a*) the total income determined under sub-section (1) of section 143 or assessed under section 143 or section 144 or section 147 or section 153A or section 153C or assessed earlier under clause (*c*) of sub-section (1) of section 158BC or sub-section (4) of section 245D, prior to the date of initiation of the search or the date of requisition, in respect of any of the previous year comprising the block period;

(*b*) the total income declared in the return of income filed under section 139 or in response to a notice under sub-section (1) of section 142, prior to the date of initiation of the search or the date of requisition, in respect of any of the previous year comprising the block period, and not covered under clause (*a*);

(*c*) the income computed by the assessee, in respect of—

(*i*) a previous year, where such previous year has ended and the due date for furnishing the return for such year has not expired prior to the date of initiation of the search or the date of requisition, on the basis of entries relating to such income or transactions as recorded in the books of account and other documents maintained in the normal course before the date of initiation of search or the date of requisition;

(*ii*) the period commencing from the 1st day of April of the previous year in which the search is initiated or requisition is made and ending on the day immediately preceding the date of initiation of search or requisition, on the basis of entries relating to such income or transactions as recorded in the books of account and other documents maintained in the normal course for such period on or before the day immediately preceding the date of initiation of search or the date of requisition;

(*iii*) the period commencing from the date of initiation of the search or the date of requisition and ending on the date of the execution of the last of the authorisations for search or requisition, on the basis of entries relating to such income or transactions as recorded in the books of account and other documents maintained in the normal course for such period on or before the date of the execution of the last of the authorisations:

**Provided** that where the Assessing Officer is of the opinion that any part of the income as computed by the assessee under this clause is undisclosed, he may re-compute such income;

(*d*) the total income referred to in sub-section (5) of section 115A or section 115G or sub-section (1) of section 194P.";

(C) in sub-section (2), the words, brackets, figures and letters "forming part of the total income referred to in sub-section (1) of section 158BA," shall be omitted and shall be deemed to have been omitted;

(D) for sub-section (3), the following sub-section shall be substituted and shall be deemed to have been substituted, namely:—

"(3) Where any income required to be determined as a result of search or requisition of books of account or other documents and any other material or information as are either available with the Assessing Officer or come to his notice during the course of proceedings under this Chapter, or determined on the basis of entries relating to such income or transactions as recorded in books of account and other documents maintained in the normal course on or before the date of the execution of the last of the authorisations, relates to any international transaction or specified domestic transaction referred to in section 92CA, pertaining to the period beginning from the 1st day of April of the previous year in which last of the authorisations was executed and ending with the date on which last of the authorisations was executed, such income shall not be considered for the purposes of determining the total undisclosed income of the block period and such income shall be considered in the assessment made under the other provisions of this Act.";

(E) for sub-section (5), the following sub-section shall be substituted and shall be deemed to have been substituted, namely:—

"(5) The tax referred to in sub-section (7) of section 158BA shall be charged on the total undisclosed income determined in the manner specified in sub-section (1).";

(F) sub-section (6) shall be omitted and shall be deemed to have been omitted.